

THE UNIVERSAL HOUSE OF JUSTICE

1998-05-21

dear bahá'í friends,

enclosed persian original and english translation of an extraordinary verdict handed down by court of Appeals Number eight for the province of khurásán, 18 September 1997, against two members of the iranian bahá'í community, mr. jamáli'd- dín hájipúr and mr. manúrah mihrábí. both defendants had appealed against sentences passed on them by the revolutionary court Number one in bírjand, iran, which had sentenced each of them to two years imprisonment and the confiscation of property.

The appeals court upheld the decisions of the lower court. This document is being sent so that you may share it with your government and draw attention to those statements that indicate the atmosphere in which the bahá'ís of iran live.

As with many other judgments by iranian courts, the document provides further evidence that members of the bahá'í faith in iran are being arrested and condemned solely because of their membership in what is described as "the wayward bahá'í sect." The statement in the verdict that "bahá'ism is recognized as an illegal organization" makes a mockery of the iranian regime's claim that bahá'ís nevertheless retain their rights to the observance of their religious beliefs. charges brought against the defendants mention that they have "regularly been holding bahá'í feasts and meetings on 'bahá'í life,'" adducing such activities as evidence of criminal behavior, including "espionage" for the state of israel.

what is startling in the text of the judgment, however, is that it also accepts as evidence of illegal activity such actions of the two defendants as holding classes for bahá'í youth in, respectively, english language studies and science and technology. The charges note, without apparent embarrassment on the part of the iranian judicial authorities, that the two convicted persons carried out these activities "with the intention of improving the standard of education of bahá'í students and their families." The context in

which the behavior of the defendants has to be seen derives, of course, from 268.1

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622the fact that the iranian regime has arbitrarily excluded bahá'í students from higher education solely on grounds of their religious affiliation.

That senior bahá'ís like the two defendants have been free to offer their services in this regard is, of course, the result of their having been dis-

missed—again solely on grounds of their religious affiliation—from their employment. The charges upheld by the appeals court leave no doubt on

this point, noting in passing that mr. mihrábí had been dismissed from his position “as a result of the cleansing procedures.”

it will be apparent to your National Assembly that the persecution of messrs. bájpúr and mihrábí is part and parcel of the continuing attempt to suffocate the spiritual and community life of the iranian believers, as called for in the secret memorandum endorsed by the iranian head of State, Ayatollah khamenei, a copy of which was submitted to the united Nations human rights commission by its Special representative, professor reynaldo galindo pohl.

The general issue of the protection of the civil rights of the members of the iranian bahá'í community is under close and continuing scrutiny by the united Nations, the general Assembly having adopted, on 12 december 1997, a resolution (52/142) calling unambiguously for the government of iran to “implement fully the conclusions and recommendations of the Special rapporteur of the commission on human rights on religious intolerance relating to the bahá'ís . . . until they are completely emancipated.”

Those recommendations included the restoration of the bahá'í community's rights in the administration of its affairs and the rights of its youth to education. . . .

with loving bahá'í greetings,

for Department of the secretariat268.4

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1996–2000 • The four Year Plan

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Formation of the National Spiritual Assembly
of Slovakia

[signed: The Universal House of Justice]